

Data Processing Addendum

This Data Processing Addendum ("DPA") forms part of the FC Pilot Agreement between Customer and [FULL LEGAL NAME OF FC SINGAPORE ENTITY] ("FC").

1. Scope and Roles

1.1 This DPA applies by default to a standard FC Pilot, including processing of Consumer Interaction Data, persistent identifiers, IP/technical events, and consumer or order data supplied or connected by Customer. It is inapplicable only where the Order Summary expressly approves an Anonymized Deployment Exception and no Personal Data is processed.

1.2 Customer is Controller/Business and FC is Processor/Service Provider for Customer Personal Data. Where Singapore's PDPA applies, FC also acts as Data

Intermediary. Each party independently controls business-contact data used for contracting, payment, compliance and account administration.

1.3 Customer's documented instructions consist of the Agreement, Order Summary, this DPA and configurations approved by Customer through FC.

2. Limited Purposes and Restrictions

FC processes data only to provide the NFC experience, interaction and replenishment functions, Dashboard/reports, authorized integrations, support, security and legal compliance. FC will not sell Customer Personal Data, use it for cross-context behavioral advertising, link identities across brands, build cross-brand profiles, process for an unauthorized independent purpose, train a general-purpose model, unlawfully combine data or reidentify deidentified data. FC may notify Customer and suspend an instruction it reasonably believes unlawful.

3. Data Subjects and Categories

Data Subjects include interacting consumers, authorized Customer users, and individuals represented in lawfully supplied or connected records. Data may include magnet/campaign/customer/order identifiers; TAP, session, CTA, reward and timestamp events; device/browser/IP/security logs; self-reported product use and inventory; preferences, satisfaction and replenishment intent; and authorized Shopify/Klaviyo identifiers, order and segment data. Self-reported or estimated data is not verified use or inventory.

4. Prohibited or Restricted Data

Without a specific addendum, required privacy design and separate consent, the Services may not process health conditions, symptoms, diagnoses, prescriptions, dosage, treatment outcomes, health goals or inferences; direct data from children under 13; precise location; biometrics; government identifiers; full payment-card/bank credentials; or other sensitive data. Replenishment functions record consumption rhythm, not health reason. Children's/family-food experiences are parent-facing by default.

5. Customer Obligations

Customer is responsible for lawful instructions and sources, Notice at Collection, consent/opt-out, brand claims and offers, data minimization, consumer-rights responses and Shopify/Klaviyo permissions. Customer will not request health inferences, cross-brand profiles or presentation of Attributed Revenue as Incremental Revenue without an appropriate experiment.

6. FC Obligations and California Terms

FC will process only for lawful, limited and specified purposes; comply with applicable Service Provider, Contractor, Processor and Data Intermediary obligations; and provide the same level of privacy protection required by applicable law. FC will maintain confidentiality, security, records and reasonable assistance with rights requests, assessments, export and deletion. Dashboard output is aggregated or segmented by default; individual records require lawful identity association, notice/consent and Order Summary authorization.

If FC determines that it can no longer meet applicable obligations, FC will notify Customer without undue delay and stop affected new processing. Customer may take reasonable steps to verify compliance and may require FC to stop, isolate, delete and remediate unauthorized processing.

7. Security

FC maintains role-based least-privilege access, authentication, encryption in transit and at rest where appropriate, logical separation, logging and monitoring, vulnerability/patch management, backup and recovery, business continuity, incident response and access reviews. This is not an absolute security guarantee or claim of an unearned certification.

8. Subprocessors

Customer authorizes Subprocessors necessary for hosting, storage, CDN, monitoring, support, communications, integrations and security. FC will impose materially equivalent obligations and remains responsible for delegated performance.

FC will provide an accurate Subprocessor List before launch. FC will ordinarily give at least 15 calendar days' notice of a material addition or replacement. FC

may make an immediate change required by urgent security risk, law, unexpected provider outage or business continuity and will notify Customer as soon as reasonably practicable. Customer may object on reasonable data-protection grounds, and the parties will seek an alternative in good faith.

9. Cross-Border Processing

Data may be processed in Singapore, the United States and disclosed Subprocessor locations. The parties will use legally required transfer mechanisms. Applicable SCCs, UK Addendum or another mechanism must be added before EU/UK data enters scope.

10. Security Incident

A "Security Incident" is an event for which credible grounds indicate that Customer Personal Data has been or may have been accidentally or unlawfully destroyed, lost, altered, disclosed or accessed and requires response. When FC has credible grounds to believe such an incident occurred, FC will notify Customer without undue delay and, where reasonably practicable, within 48 hours for an initial notice. An incomplete investigation is not grounds to delay initial notice. Information may be provided in phases and notice is not an admission. The parties will coordinate legally required regulator or consumer communications.

11. Requests and Audit

FC will reasonably assist rights requests under Customer instructions. Customer may request security descriptions, questionnaires and existing evidence. Except following an incident or regulatory requirement, further audit is ordinarily limited to once per year and must protect confidential/security information and avoid unreasonable disruption.

12. Retention, Export and Deletion

The standard maximum active retention for Consumer Interaction Data is 24 months. Following expiration or termination, Customer has 30 days to request export in the Order Summary format. FC will then delete or return active-system data within 60 days; protected backups are deleted or overwritten within the

ordinary cycle, not exceeding 90 days. Legally retained records and non-separable security, multi-tenant and fraud logs are excluded.

13. Aggregated and Deidentified Data

FC may use data that cannot reasonably identify Customer or an individual to operate, secure and improve the Services and create general benchmarks, but will not reidentify or disclose Customer-specific results.

14. Priority and Duration

The Agreement's indemnity and liability terms apply except where limitation is prohibited. This DPA controls conflicts concerning Personal Data. It begins on the earlier of Agreement acceptance or processing and continues until required return/deletion is complete.

Schedule: Standard Pilot

Item	Default
Data Subjects	U.S. adult consumers and authorized Customer personnel
Consumer Interaction Data	Enabled
Shopify/Klaviyo	Only if enabled in Order Summary
Health/Sensitive Data	Prohibited
Direct Child Data	Prohibited; parent-facing
Sale/Cross-context ads/Cross-brand identity	Prohibited
Active Retention	Service Expiration Date
Exit	30-day export; 60-day active deletion; backup cycle up to 90 days
Security Incident	Without undue delay; initial notice within 48 hours where practicable
Subprocessors	Accurate pre-launch list; ordinarily 15 days' material-change notice